

Stereo HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.80490-J/2021

Mazhar Hussain Shah & another vs The State

Murder Reference No.03/2022

The State vs Mazhar Hussain Shah &
Tauqueer Haider Shah

J U D G M E N T

Date of hearing:	<u>05.05.2025</u>
Appellants by:	Mr. Muhammad Aslam Bhatti, Advocate, <i>vice</i> counsel for the appellants.
State by:	Ms. Nuzhat Bashir, Deputy Prosecutor General.
Complainant by:	Syed Tahir Abbas, Advocate.

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.80490-J/2021** filed by Mazhar Hussain Shah and Tauqueer Haider Shah (appellants) against their “convictions & sentences” and **Murder Reference No.03/2022** sent by trial court, as both the matters have arisen out of one and the same judgment dated: 14.12.2021 passed by learned Addl. Sessions Judge, Shahpur, District Sargodha/trial court.

2. Mazhar Hussain Shah and Tauqueer Haider Shah (appellants) alongwith their co-accused persons namely Tassadaq Hussain Shah, Muhammad Hussain Shah, Muhammad Ali Shah, Khadim Hussain Shah, Muneer Hussain Shah, Abid Hussain Shah and Ali Naqi Shah were tried in case arising out of FIR No.286/2019 dated: 03.10.2019 registered under Sections: 302, 109, 148, 149 PPC (during investigation offences under Sections: 148, 149 PPC were deleted whereas offence under Section:

34 PPC was added) at Police Station: Shahpur Saddar, District Sargodha and after conclusion of the trial, while acquitting aforementioned co-accused persons namely Tassadaq Hussain Shah, Muhammad Hussain Shah, Muhammad Ali Shah, Khadim Hussain Shah, Muneer Hussain Shah, Abid Hussain Shah and Ali Naqi Shah *vide* impugned judgment dated:14.12.2021, trial court has convicted and sentenced the appellants as under: -

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302 (b) PPC read with Section 34 PPC	<i>“Death”</i> (for committing <i>Qatl-e-Amd</i> of Munawar Abbas) with payment of compensation Rs.2,00,000/- each to the legal heirs of the deceased under Section: 544-A Cr.P.C. recoverable as arrears of land revenue and in default of payment of compensation amount to further undergo S.I. for one year each.

3. Brief facts, as per application (Ex.PL) moved by Tasawar Hussain Shah (complainant/PW-10) to Muhammad Azam, ASI of Police Station: Shahpur Saddar, District Sargodha (PW-4) for registration of the case are that he is resident of Salimabad, Tehsil Shahpur, District Sargodha; on 03.10.2019 at about 7:55 a.m., complainant and his brother Munawar Shah were going to Shahpur Saddar Katchery (شاہپور صدر کچہری) on motorcycle Honda CD/70 SKG/669 in connection with date of hearing (تاریخ پیشی) of their brother Qamar Abbas whereas their brother Murtaza Shah and Zameer Shah son of Nazeer Shah were coming behind them on motorcycle; when they reached Kulyan Chowk, accused persons Mazhar Shah son of Sabir Shah armed with pistol .30-bore, Tauqeer Shah son of Tassadaq Shah armed with pistol .30-bore, Muhammad Ali Shah son of Sajjad Shah armed with pistol .30-bore came from behind on motorcycle; Mazhar Shah raised *lalkara* to teach them a lesson for committing murder of Mowdat Shah; Tauqeer Shah fired straight shot with pistol .30-bore with intent to kill, which hit Munawar Shah, who was driving the motorcycle, below right shoulder, second straight shot with intent to kill was fired by Mazhar Shah with pistol .30-bore, which landed towards right side of Munawar Shah at back of ear and exited from the other side, third straight shot with intent to kill was fired by Muhammad Ali Shah, which landed

towards right side below shoulder of Munawar Shah; complainant and his brother fell down from the motorcycle and Munawar Shah (brother of the complainant) succumbed to the injuries; all the accused persons with intent to kill made straight firing at Murtaza Shah and Zameer Shah who had come from behind but they luckily remained safe and fires hit on the wall of the school and tree, they too fell down; Muneer Shah son of Mazhar Shah armed with pistol .30-bore along with two unknown armed with firearms, who could be identified on coming across, remained standing at some distance in order to safeguard aforesaid accused persons and took away the accused with them; chaos spread at thoroughfare due to firing of accused persons.

Motive behind the occurrence was that brother of Tauqueer Shah namely Mowdat Shah was murdered and false FIR was registered against brother of the complainant namely Qamar Shah and brother of the complainant is in jail in said case; complainant along with his brother Munawar Shah had been pursuing the case, due to which grudge, instant occurrence was committed at the abetment and conspiracy of accused persons Tassadaq Hussain Shah, Muhammad Hussain Shah, Khadim Hussain Shah; conspiracy hatched by the accused persons was heard by Zulqarnain Shah son of Akbar Shah at about 8:00 p.m. on 02.10.2019 at the *dera* of Muhammad Hussain Shah; on finalizing the conspiracy, aerial firing was also made by the accused persons.

On the basis of application (Ex.PL), F.I.R. (Ex.PE) was chalked out by Muhammad Azam, A.S.I. (PW-4).

4. After completion of investigation, challan report under Section: 173 Cr.P.C. was submitted in the Court against the appellants by placing their names in column No.3 of the same; appellants were formally charge sheeted, however, they pleaded not guilty and claimed trial whereupon prosecution evidence was summoned; prosecution during trial examined twelve (12) witnesses, out of which, medical evidence was furnished by Dr. Zain Safdar, Medical Officer (PW-1), ocular account was furnished by Tasawar Hussain Shah (complainant/PW-10) and Ghulam Murtaza Shah (PW-11) whereas detail of investigation of the case was deposited by Muhammad Iqbal Shah, Sub-Inspector/Investigating Officer

(PW-12); prosecution after giving up Zameer Hussain Shah, Sajid Hussain Shah, Haider Ali, 1872/C, Dr. Nasir Iqbal Ranjha and Dr. Ghulam Shabbir (PWs) as being unnecessary and tendering reports of Punjab Forensic Science Agency, Lahore (Ex.PU and Ex.PV) closed its evidence; after recording of prosecution evidence, appellants were examined under Section: 342 Cr.P.C. but they refuted the allegations levelled against them; they neither opted to appear as their own witnesses under Section: 340(2) Cr.P.C. nor produced any evidence in their defence.

Trial Court after conclusion of trial has convicted and sentenced the appellants as mentioned above through the impugned judgment dated: 14.12.2021.

5. Learned counsel for the appellants has submitted that convictions recorded against and sentences awarded to the appellants through impugned judgment are against the 'law and facts' and result of non-reading/misreading of evidence, therefore, same are not sustainable in the eyes of law. Learned counsel for the appellants finally prayed for acquittal of the appellants.

6. Conversely, learned Deputy Prosecutor General and learned counsel for the complainant have supported the impugned judgment and prayed for dismissal of the appeal.

7. **Arguments heard. Record perused.**

8. It is cardinal principle of law that each criminal case has its own peculiar facts and circumstances and that has to be weighed on the judicial parlance while taking into consideration as it is brought-forth. It has been noticed that as per case of prosecution, machinery of law was brought into motion by Tasawar Hussain Shah (complainant/PW-10) by way of moving application for registration of the case (Ex.PL). It has been mentioned by Muhammad Azam, ASI (PW-4) that case No.286/2019 dated: 03.10.2019 under Sections: 302, 109, 148, 149 PPC, Police Station: Shahpur Saddar, has been registered, report is submitted and relevant portion from the same is hereby scanned below:-

[illegible]

which *prima facie* shows that said application was addressed to Station House Officer, Police Station: Shahpur Saddar and submitted in the Police Station, on which case (Ex.PE) was registered because any other proceedings conducted by any other police official to show that same was submitted by complainant to some other police official at any else place i.e. at the place of occurrence or on the way to the hospital and said police official after receipt of application, send the same to the Police Station for registration of the case is not mentioned on said application. It is astonishing to note that FIR No.286/2019 (Exh.PE) was recorded on the basis of aforesaid application and it has been mentioned in *karwai police* (کاروائی پولیس) in the FIR that Muhammad Iqbal, Sub-Inspector of Police Station: Shahpur Saddar, after receiving information regarding the occurrence reached at THQ Hospital, Shahpur Saddar, found dead body of Munawar Abbas lying there, after apparent examination of the dead body, applications for postmortem examination and inquest report were prepared, dead body was being sent in the custody of Taqi Haider, 670/C and in these circumstances as well as application of complainant, offence under Sections: 302, 109, 148, 149 PPC have been found and application in the

form of *Istaghasa* (استغاثہ) for registration of the case is being sent through Adnan Ali, 1300/C and relevant portion of proceedings of police (کاروائی پولیس) is hereby scanned below:-

کاروائی پولیس اس وقت اطلاع و قوعہ پاکر میں معہ قتی حیدر C/670، عدنان علی C/1300، کلیم اللہ C/286، غلام عباس C/2470 محمد عزیز PQR/56 سواری سرکاری گاڑی موٹر 1 ڈرائیور نصرت حیات DC/1817 تحصیل میڈ کوارٹر ہسپتال شاہپور پہنچا ہوں فٹش مقتول منور عباس ولد نذر حسین THQ ہسپتال میں پڑی ہے جسکا ظاہری ملاحظہ کرنے کے بعد درخواست پر شمارم و نقشہ صورت حال مرتب کر کے بغرض پور شمارم زیر حفاظت قتی حیدر C/670 بجوائی جاری ہے حالات واقعات و درخواست مدعی سے صورت جرم 302/109/148/149 تپ پائی جا کر درخواست بشکل استغاثہ برائے اندراج مقدمہ بدست عدنان علی C/1300 بجوائی جاری ہے مقدمہ درج رجسٹر کر کے نمبر مقدمہ سے اطلاع دی جاوے میں موقع پر مصروف تفتیش ہوں اطلاع و قوعہ بذریعہ سیکل رپورٹ انفران جلاز بجوائی جاوے۔ محمد اقبال SI قتلہ شاہپور صدر از THQ ہسپتال شاہپور صدر بوقت 11:45 بجے دن مورخہ 03.10.19۔ از قتلہ حسب آمد استغاثہ رپورٹ ابتدائی اطلاعی ہذا مجرم مذکور مرتب ہوئی قتل مل پولیس بمراء تفتیش بدست آرنہہ کنسٹیبل عقب فرسندہ SI صاحب بجوائی جاری ہے سیکل رپورٹ انفران بالا بجوائی جا رہی ہے۔

Perusal of said proceedings of police (کاروائی پولیس) reveals that though it has not been expressly mentioned in the same that application was moved and same was handed over by Tasawar Hussain Shah (complainant) to Muhammad Iqbal, S.I. at THQ Hospital Shahpur yet it has been mentioned therein that said application is being sent through aforementioned constable to the Police Station for registration of the case and providing of number of case, which reflects clouds on the subject i.e. regarding place of filing of application for registration of the case, particularly when *karwai* police (کاروائی پولیس) is not written on the original application for registration of the case (Ex.PL); in this regard, relevant portion of the statement of Muhammad Iqbal, S.I. (PW-12) is reproduced as follows:-

“It is correct that my endorsement is not available on Exh-PL about receiving the said application.”

Though said witness volunteered that he has mentioned proceedings on separate page about receipt of application but any such separate page has neither been independently exhibited nor is available on the record as apprised by Additional Registrar (Court) after scrutinizing the record and in this regard, relevant portion of statement of Investigating Officer of the case (PW-12) is reproduced as under:-

“Volunteered that I have mentioned proceedings on a separate page about the receipt of the said application due to lack of space on Exh-PL.”

As per application for registration of FIR (Ex.PL), occurrence took place at 7:55 a.m. on 03.10.2019 at Kulyan Chowk within the area of Police Station: Shahpur Saddar, which is situated at a distance of one and half Kilometers from the Police Station as per column No.4 of the FIR (Ex.PE) and it has been mentioned in the FIR that Munawar Abbas

(deceased of the case) succumbed to the injuries at the spot, however, matter was not reported to the police promptly. It is relevant to mention here that even it is not mentioned in the application for registration of the case (Ex.PL) as well as in the FIR (Ex.PE) that complainant and cited eye witnesses shifted the dead body of the deceased to the hospital, however, even then as per own case of the prosecution, application for registration of the case was written at 11:00 p.m. on 03.10.2019 i.e. after the delay of about three hours and five minutes of the occurrence and FIR was recorded at 12:05 p.m. on 03.10.2019. It is relevant to mention here that office of Deputy Superintendent of Police/Sub-Divisional Police Officer was located just at a distance of one and half acres from the place of occurrence and in this regard, relevant portion of the statement of Muhammad Iqbal, S.I. (Investigating Officer/PW-12) is hereby reproduced as under:-

“Office of DSP/SDPO is located at the distance of about 1-½ acer from the place of occurrence.”

Tasawar Hussain Shah (complainant/PW-10) has conceded that Police Station Shahpur is situated just at a distance of half Kilometer from the place of occurrence and relevant portion of the statement of PW-10 in this regard reads as follows:-

“Police Station Shahpur Saddar is situated at the distance of half k.m from the place of occurrence.”

and in such circumstances, matter has not been reported to the police promptly rather with considerable delay for which any plausible explanation has not been offered by the prosecution, which leads to the conclusion that none of the cited witnesses including complainant was present at the time and place of occurrence, time was consumed for procuring, engaging and introducing witnesses, tailoring story for the case of prosecution and then registering the case in its present form; furthermore, perusal of Postmortem Examination Report (Ex.PA) reveals that it has been mentioned in the same that as per police papers, time of death is at 07:45 a.m. on 03.10.2019, Dr. Zain Safdar while appearing as PW-1 stated that on 03.10.2019 at 07:45 a.m. Taqi Haider 670/C brought dead body of Munawar Abbas (deceased) in the hospital and in this regard, relevant portion of the statement of PW-1 is hereby reproduced as under:-

“On 03.10.2019 I was posted as M.O at THQ hospital, Shahpur Sadar. On the same day at about 7;45 am, Taqi Haider 670/c brought to me dead body of deceased Munawar Abbas s/o Nazar Hussain, aged 39 years, for post mortem examination, which was identified by Tahir ul Hassan and Sajid Hussain Shah.”

Taqi Haider 670/C while appearing as PW-2 stated in his statement before the court during trial of the case that Investigating Officer escorted dead body of deceased from Kulyan Chowk and reached hospital at 07:45 a.m.; relevant portion of the statement of Taqi Haider 670/C (PW-2) is hereby reproduced as follows:-

“I.O. escorted the dead body of deceased from Kulyan Chowk and reached hospital at about 7;45 am.”

which state of affairs clearly reflects that when police brought dead body from the place of occurrence at 07:45 a.m., then occurrence was brought in the notice/knowledge of the police i.e. Muhammad Iaqbal, S.I./ Investigating Officer (PW-12) and Taqi Haider, 670/C (PW-2) before 07:45 a.m., which fact on the one hand negates that occurrence took place at 7:55 a.m. and on the other hand also reflects that occurrence took place before 07:55 a.m. and it was in the knowledge/notice of the police but even then case was registered at 12:05 p.m. for which no plausible, convincing and cogent reason could be rendered by the complainant and in such circumstances, First Information Report (crime report), which is cornerstone of the case of the prosecution, cannot provide any support to the case of prosecution and superstructure i.e. case of prosecution raised on the basis of such sort of FIR is bound to fall and in this regard, cases of **“HAROON SHAFIQUE versus The STATE and others”**(2018 SCMR 2118), **“MUHAMMAD RAFIQUE alias FEEQA versus The STATE”** (2019 SCMR 1068), **“SUFYAN NAWAZ and another versus The STATE and others”** (2020 SCMR 192) and **“MUHAMMAD ADNAN and another versus The STATE and others”** (2021 SCMR 16) can be safely referred.

As per case of prosecution, Munawar Abbas (deceased) received three firearm injuries whereas as per Postmortem Examination Report of the deceased (Ex.PA), he received four firearm wounds and one exit wound whereas fourth injury could not be explained by the complainant as well as eye witnesses.

So far as ocular account in this case is concerned, same consists upon the statements of Tasawar Hussain Shah, complainant (PW-10) and Ghulam Murtaza Shah (PW-11) whereas Zameer Hussain Shah (eye witness) was given up by the prosecution being unnecessary. As per application for registration of the case (Ex.PL) and FIR (Ex.PE), Mazhar Hussain Shah (appellant) was armed with pistol .30-bore, raised *lalkara*, fired shot with pistol which hit Munawar Shah (deceased of the case) behind his right ear and made its exit from the other side, Tauqeer Haider Shah (appellant) fired straight shot with pistol .30-bore which hit Munawar Shah (deceased of the case) under his shoulder towards right side whereas Muhammad Ali Shah (since acquitted co-accused) armed with pistol .30-bore fired straight shot hitting Munawar Shah (deceased) under his right shoulder. It is noteworthy here that Muhammad Ali Shah (co-accused) who was attributed equally effective role of causing firearm injury to Munawar Shah (deceased of the case as detailed above) has been acquitted of the charge in the case while disbelieving evidence of the prosecution witnesses through the same impugned judgment dated: 14.12.2021 passed by learned Additional Sessions Judge, Shahpur, District Sargodha, which acquittal is still holding the field and the same has even not been challenged uptill now as confirmed by learned Deputy Prosecutor General as well as learned counsel for the complainant, therefore, said evidence now can only be relied and used against present appellants if same is strongly corroborated by the independent evidence; in this regard, guidance has been sought from the dictum laid down in the cases of **“Munir Ahmad and another versus The State and others”** (2019 SCMR 79), **“ALTAF HUSSAIN versus The STATE”** (2019 SCMR 274), **“MUHAMMAD IDREES and another versus The STATE and others”** (2021 S C M R 612), **“PERVAIZ KHAN and another versus The STATE”** (2022 S C M R 393), **“RAFAQAT ALI versus The STATE”** (2022 S C M R 1107) and **“SAJJAD HUSSAIN versus The STATE and others”** (2022 S C M R 1540).

It is relevant to mention here that it has been mentioned in the crime report (FIR) that motive behind the occurrence was murder of Mowdat Shah, FIR was registered in said regard against Qamar Shah

(brother of the complainant) who was confined in jail, complainant and his brother namely Munawar Shah were pursuing said case and on the day of occurrence, complainant and Munawar Shah (deceased of the case) were going to Katchery on date of hearing (تاریخ پیشی) in said case whereas Murtaza Shah (brother of the complainant) and Zameer Shah were also following them on motorcycle. It has been mentioned by the complainant in the FIR that he and his deceased brother Munawar Shah were pursuing said case, meaning thereby that if it was grudge of committing this occurrence by the accused persons, then it was also equally attributed to the complainant because he was also pursuing said case along with his brother Munawar Shah and it is relevant to mention here that as per statement of Zulqarnain Shah (PW-8), Munawar Shah (deceased of the case) and his brothers namely Tasawar Hussain Shah (complainant/PW-10), Murtaza Shah (eye witness/PW-11), Mustafa Shah and Zameer Shah were accused of the murder case of Mowdat Shah (deceased); in this regard, relevant portion of the statement of Zulqarnain Shah (PW-8) is hereby reproduced as follows:-

“Munawar Shah and his brothers namely Tasawar Shah, Murtaza Shah, Mustafa Shah and Zameer Shah were accused of the murder of case of Mowadat Shah deceased.”

and complainant conceded that in the case of Mowdat Shah (motive of the occurrence), he (complainant) was also accused and relevant portion from his statement in this regard is hereby reproduced as under:-

“Mawadat Shah was murdered about 01 year prior to the occurrence. During the days of occurrence the said case was still pending. I was also accused in that case.”

This state of affairs further shows that complainant and Ghulam Murtaza Shah (PW-11), who have appeared as eye witnesses in this case along with aforementioned other persons were accused in murder case of Mowdat Shah and if it was motive for the occurrence, then it was equally alleged against complainant and Ghulam Murtaza Shah but then why they have been spared and not targeted by the accused persons.

Statements of Taqi Haider 670/C (PW-2) and Dr. Zain Safdar (PW-1) clearly show that complainant and other cited eye witnesses did not bring dead body of the deceased from the place of occurrence to the

hospital rather Taqi Haider 670/C (PW-2) along with Muhammad Iqbal, S.I./Investigating Officer of the case (PW-12) brought the same there (as detailed above); furthermore, complainant and other cited witnesses did not try to immediately report the matter to the police despite the fact that Police Station was just at a distance of 1½ Kilometers from the place of occurrence whereas office of Deputy Superintendent of Police/Sub-Divisional Police Officer was just at a distance of one and half acres from the place of occurrence (as discussed supra), which fact raises question mark regarding presence of the complainant as well as other cited eye witnesses at the relevant time at the place of occurrence.

Ghulam Murtaza Shah (PW-11) clearly stated during cross-examination that none of them proceeded to the Police Station to inform the police; in this regard, relevant portion of his statement in this regard reads as follows:-

“None of us had proceeded to P.S. to inform the police.”

(emphasis added)

Any bloodstained cloths of complainant and other cited eye witnesses were neither produced during investigation nor during trial of the case.

Apart from above, it is noteworthy here that in this case, ocular account produced by the prosecution comprises of statements of Tasawar Hussain Shah (complainant/PW-10) and Ghulam Murtaza Shah (PW-11); admittedly, they both are not residents of the place of occurrence i.e. Kulyan Chowk rather they are residents of Chak Salimabad, Tehsil Shahpur, District Sargodha; in this regard, relevant portion of the statement of Tasawar Hussain Shah (complainant/PW-10) is hereby reproduced as follows:-

“Munawar Shah deceased was my brother. Murtaza Shah PW also my brother. PW Zameer Shah is my Mamoozad. I, Murtaza Shah and Zameer Shah resided at Chak Salimabad which is at distance of about 02 k.m, from the place of occurrence.”

Similarly, Ghulam Murtaza Shah (PW-11) stated that he is resident of village Salimabad which is situated at a distance of 2½ Kilometers from the place of occurrence; relevant portion of the statement of PW-11 in this regard is hereby reproduced as follows:-

“I am resident of village Salimabad which is at the distance of 2½ k.m, from place of occurrence.”

therefore, they were “chance witnesses” and were thus required to establish valid and acceptable reason to prove their presence at the “time & place” of occurrence. It is case of prosecution that both said witnesses were going to Katchery on the date of hearing (تاریخ پیشی) of Qamar Shah (mentioned above) but any Cause List or any other document to show that on the day of occurrence of instant case, it was the date of hearing fixed in said case, has not been brought on the record; therefore, aforementioned reason claimed by the complainant and other cited eyewitnesses regarding their presence/availability at the relevant “time & place” of occurrence could not be established; in this regard, guidance has been sought from the cases of **“MUHAMMAD RAFIQUE versus The STATE” (2014 S C M R 1698)** and **“ARSHAD KHAN versus The STATE” (2017 S C M R 564);** relevant portion from latter case law is as under: -

“Both the eye-witnesses produced in this case, i.e. Zahid Khan complainant (PW8) and Muhammad Sadiq (PW9) were very closely related to Mst. Naheed Akhtar deceased and they were admittedly chance witnesses. The said witnesses had maintained before the trial court that at the relevant time they were proceeding towards a mosque in order to offer Fajar prayers but a bare look at the site-plan of the place of occurrence shows that the houses of the said eye-witnesses were not situated close to the house of occurrence and they were situated so far away that they could not find any mention in the site-plan of the place of occurrence at all. No mosque near the house of occurrence had been shown in the said site-plan and, thus, the stated reason for presence of the said eye-witnesses near the place of occurrence never stood established on the record through any evidence whatsoever.”

As per case of prosecution, complainant was sitting behind the deceased of the case on the motorcycle, accused persons came from behind and resorted to firing, fire shots have hit at behind ear and shoulder of the deceased but surprisingly complainant did not receive any firearm injury. Furthermore, it is own case of prosecution that complainant and deceased fell from the motorcycle but complainant did not receive even a single scratch due to said falling.

In above scenario, evidence of both aforementioned cited witnesses, who could not explain/establish any valid reason/cause regarding their stated presence at the stated time, at the place of occurrence,

is “suspect” evidence and cannot be accepted without pinch of salt; guidance in this regard has been sought from the case of “**Mst. SUGHRA BEGUM and another vs. QAISER PERVEZ and others**” (2015 SCMR 1142) and relevant portion from paragraph No.14 of said case law is hereby reproduced: -

“14. A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.”

Further guidance on the subject has been sought from the case of “**MUHAMMAD ASHRAF alias ACCHU versus The STATE**” (2019 SCMR 652), “**Mst. MIR and another versus The STATE**” (2020 SCMR 1850) and “**SARFRAZ and another versus The STATE**” (2023 SCMR 670).

It is relevant to mention here that as per case of prosecution, Murtaza Shah along with other eye witness namely Zameer Shah (given up PW) was going behind the motorcycle of the deceased and complainant but neither any registration number, colour, model or company of motorcycle has been mentioned in the crime report nor same has been even produced during investigation of this case; relevant portion of the statement of Ghulam Murtaza Shah (PW-11) in this regard is hereby reproduced as follows:-

“I had not given the detail i.e. registration number, colour, make or model of my motorcycle in my statement before the police. The said motorcycle was not produced by us to the police during the investigation nor the same was taken into possession by the I.O on his own.”

Another blow on the testimonies of complainant and other witness of ocular account is that during investigation they obtained oath regarding innocence qua Muhammad Ali Shah (co-accused since acquitted), who was declared innocent during investigation of the case and complainant party was agreed on the same as well as regarding taking oath of co-accused

Khadim Hussain qua his innocence and relevant portion of the statement of PW-10 in this regard reads as follows:-

“It is correct that during investigation of this case on 05.11.2019 I stated before the I.O and inspector/S.H.O that if one Mazhar Shah s/o Akbar Shah caste Syed r/o Chak Laloo, Jhawarian would give oath of innocence of accused Muhammad Ali Shah then he may declared his innocence and a document was drafted in this regard. It is correct that said Mazhar Shah entered in the mosque and gave oath regarding innocence of accused Muhammad Ali Shah. Thereafter, the police opined that Muhammad Ali Shah was not involved in this occurrence and we agreed to the said investigation. We had also obtained the oath regarding innocence of accused Khadim Hussain.”

So when all the aforementioned factors are taken into consideration in totality, then ocular account comprising of chance witnesses, who are inimical as well as having equal attribution of stated grudge/motive for the occurrence with the assailants, is neither convincing nor confidence inspiring, hence cannot be relied for convicting and sentencing the appellants.

It is trite law that medical evidence is mere supportive/ confirmatory type of evidence; it can tell about locale, nature, magnitude of injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same neither can provide any corroboration nor is of any help to the prosecution in peculiar facts and circumstances of the case, in this regard, cases of “**Akbar Ali versus The State**” (2007 SCMR 486), “**SAJJAN SOLANGI versus The STATE**” (2019 SCMR 872) and “**Naveed Asghar and two others versus The State**” (PLD 2021 SC 600) can be safely referred.

So far as recovery of pistol .30-bore from Mazhar Hussain Shah (appellant) through recovery memo (Ex.PG) and recovery of pistol .30-bore from Tauqeer Haider Shah (appellant) vide recovery memo (Ex.PJ) is concerned, suffice it to say that as per report of Punjab Forensic Science Agency, Lahore (Ex.PV), pistol allegedly recovered from Tauqeer Haider Shah (appellant) was only found in working condition and empties secured from the place of occurrence were not found as having been fired from the same, hence said recovery is of no help to the case of prosecution;

in this regard, guidance has been sought from the case of “LIAQAT ALI and another versus The STATE and others” (2021 SCMR 780).

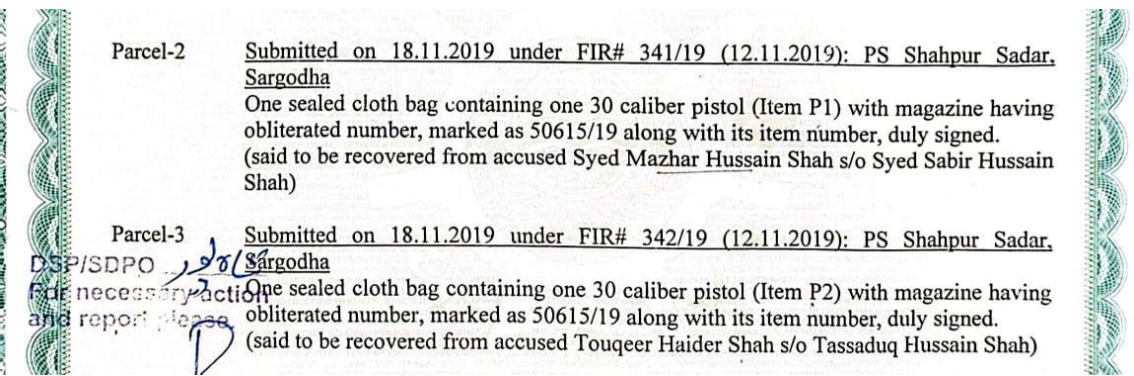
Two empties secured from the place of occurrence were found as having been fired from the pistol .30-bore statedly recovered from Mazhar Hussain Shah (appellant), but it is very much important to mention here that bullets as well as pistol were sealed into parcel and taken into possession vide recovery memo (Ex.PJ) and relevant portion of the statement of Muhammad Iqbal, S.I./ Investigating Officer (PW-12) is hereby reproduced as under:-

“The bullets as well as the pistol were sealed into parcel and were taken into possession vide recovery memo Exh.PJ.”

It is relevant to mention here that Muhammad Iqbal, S.I. (PW-12) stated in categorical terms that on 18.11.2019, Moharrar handed over to him the parcels of pistols and live bullets for onward transmission to the office of Punjab Forensic Science Agency, Lahore; relevant portion of his statement in this regard reads as follows:-

“On 18.11.2019, Moharrar handed over to me the parcels of pistols, live bullets for onward transmission to the office of PFSA, Lahore which were deposited by me in the said office.”

However, it is strange and alarming to mention here that as per report of Punjab Forensic Science Agency, Lahore (Ex.PV), parcels No.2 and 3 regarding pistols submitted in Punjab Forensic Science Agency, Lahore, in this case were not mentioned as having any live bullets in the same and relevant portion of the report is hereby scanned below:-



So it is crystal clear that according to own case of prosecution, pistol along with two live bullets statedly recovered from the possession of Mazhar Hussain Shah (appellant) were sealed into parcel and similarly pistol along

with two live bullets allegedly recovered from Tauqeer Haider Shah (appellant) were sealed into parcel. If said parcels were deposited in the office of Punjab Forensic Science Agency, Lahore, then it must have been mentioned in the report that said parcels were containing live bullets also however it is not mentioned so in said report, meaning thereby that said parcels were not those parcels which were prepared at the time of recovery of pistols containing bullets as well. Hence, safe custody of parcels of pistols has been compromised and not proved, which has ultimately made report of Punjab Forensic Science Agency, Lahore as inconclusive as well as inconsequential and of no help to the case of prosecution and in this regard, guidance has been sought from the dictum laid down in the cases of **“MUHAMMAD SALEEM versus SHABBIR AHMED and others”** (2016 SCMR 1605) and **“KAMAL DIN alias KAMALA versus The STATE”** (2018 SCMR 577).

So far as recovery of motorcycle from Mazhar Hussain Shah (appellant) through recovery memo (Ex.PH) is concerned, suffice it to say that since any registration number, colour, model or company of motorcycle of the assailants were not mentioned in the application for registration of the case (Ex.PL) as well as FIR (Ex.PE), hence same is of no avail to the case of prosecution; relevant portion of the statement of Muhammad Iqbal, S.I. (PW-12) in this regard is hereby reproduced as under:-

“There was no detail of motorcycle of accused persons in the application Exh.PL.”

As far as motive qua murder of Mowdat Shah (as detailed above) is concerned, copy of FIR or report under Section: 173 Cr.P.C. in said regard, has not been produced before the court. Even otherwise, motive is a double edged weapon, it cuts both the ways, it can also be a reason for false implication; even otherwise, when substantive evidence has been discarded, then motive loses its significance and becomes immaterial for conviction.

9. It is well established principle of law that single dent/ circumstance in case of prosecution is sufficient for acquittal; in this regard, case of **“ABDUL GHAFUOR versus The STATE”** (2022 S C M R 1527) can be safely referred.

10. In the instant case after examining the prosecution case from all corners and evaluating it on the touchstone of principle of “safe administration of criminal justice”, this Court has arrived at the conclusion that in this case, the prosecution has miserably failed to establish its case against the appellants beyond reasonable doubt. As prosecution has failed to prove its case against the appellants, therefore, there is no need to discuss defence version.

11. Resume of above discussion is that since prosecution has been failed to prove its case against the appellants beyond the shadow of doubt, therefore, instant appeal bearing Crl. Appeal No.80490-J/2021, filed by Mazhar Hussain Shah and Tauqeer Haider Shah (appellants), is allowed; convictions recorded and sentences awarded to the appellants through impugned judgment dated: 14.12.2021 are hereby set aside. Appellants are acquitted of the charge, they be released from jail forthwith, if not required in any other case.

Murder Reference No.03 of 2022 is answered in negative and death sentence awarded to Mazhar Hussain Shah and Tauqeer Haider is not confirmed.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

APPROVED FOR REPORTING

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE